

HCJDA 38
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT
Crl. Appeal No.12100-J/2022

Muhammad Qasim versus The State

JUDGMENT

Date of hearing:	<u>11.07.2025.</u>
Appellant by:	Mr. Hamza Nadeem Tarrar, Advocate.
State by:	Mr. Haroon Rasheed, Deputy Prosecutor General.
Complainant by:	Nemo for the complainant {though name of learned counsel for the complainant reflects in the Daily Cause List issued for today as apprised by Additional Registrar (Court)}.

Farooq Haider, J.:- This appeal has been filed by **Muhammad Qasim** (appellant) against the judgment dated: 10.01.2022 passed by learned Additional Sessions Judge, Kotmomin/trial court whereby in case arising out of F.I.R. No.314/2018 dated: 25.06.2018 registered under Sections: 324 148, 149 PPC (during investigation, offences under Sections: 302, 337-F(i), 337-F(vi) PPC were added subsequently) at Police Station: Kotmomin, District: Sargodha, appellant has been convicted and sentenced as under:-

<u>Conviction</u>	<u>Sentence</u>
<u>Under Section:</u> 302(b) PPC	<i>“Rigorous Imprisonment for Life”</i> for committing <i>Qatl-e-Amd</i> of Ghulam Shabbir along with payment of compensation Rs.5,00,000/- under Section 544-A Cr.P.C. to the legal heirs of deceased and in default thereof to further suffer S.I. for six months. In further default, the amount of compensation was ordered to be recovered from the convict as arrears of land revenue. Benefit of Section: 382-B Cr.P.C. was also extended to the appellant/convict.

2. Brief facts of the case in hand are that machinery of law was brought into motion on the statement/بیان (Ex.PG) of Iftikhar Ahmad (complainant/PW-3), which he got recorded to Muhammad Shahzad Munawar A.S.I. (PW-10) at Rangla Chowk, Moazzamabad Sargodha Road at 07:15 p.m. on 25.06.2018, which was sent to Police Station: Kot Momin

and on the basis of the same, F.I.R. (Ex.PG/1) was recorded at 07:45 p.m. on 25.06.2018 by Mohsin Javed S.I. (PW-9). As per aforementioned statement/فرد بیان (Ex.PG), complainant/PW-3 is resident of Chak 67-Janoobi and a labourer; on 25.06.2018, at about 06:30 p.m., his son namely Amir Shehzad went to the ground of Government Girls Middle School, Chak 67-Janoobi for playing cricket where (1) Riaz (2) Amir Shehzad (3) Khalid (4) Muhammad Qasim (5) Muhammad Saif were already present while armed with sticks and hunters and they captured him (Amir Shehzad), got him laid on the ground and started beating with sticks and hunters (اور زمین پر لٹا کر ڈنڈوں اور ہنٹرز سے مارنے لگے); other persons present in the school came to the complainant and told him upon which, the complainant along with Ghulam Shabbir (now deceased of the case), Muhammad Ali and Shoukat at once reached in the ground of the school; Riaz Gondal raised lalkara that they may not let alive upon which aforementioned accused persons armed with rifles started straight firing upon complainant party; Muhammad Qasim fired straight shot with rifle which hit at the abdomen of Ghulam Shabbir due to which he became injured and fell; all accused persons while making firing fled away and complainant and his companions while lying on the ground saved their lives.

Motive behind the occurrence as per aforementioned فرد بیان (Ex.PG) is that accused persons were having old grudge with Ghulam Shabbir (brother of the complainant) and due to this grudge, all accused persons with the intention to kill, made straight firing.

On the basis of said statement/فرد بیان (Ex.PG) of Iftikhar Ahmad (complainant/PW-3), case vide F.I.R. No.314/2018 (Ex.PG/1) dated: 25.06.2018 under Sections: 324, 148, 149 PPC was registered at Police Station: Kot Momin, District: Sargodha. Thereafter, Ghulam Shabbir expired on 29.06.2018 and offence under Section: 302 PPC was added by the investigating officer.

After investigation, report under Section: 173 Cr.P.C. was submitted in the Court; Muhammad Qasim (appellant) and his co-accused persons were formally charge sheeted to which they pleaded not guilty and claimed trial. Prosecution during trial examined twelve witnesses whereas giving up Muhammad Irfan being unnecessary and after tendering reports of Punjab Forensic Science Agency (Ex.PS and Ex.PT), closed its evidence.

Thereafter statements of the appellant and his co-accused persons under Section: 342 Cr.P.C. were recorded wherein they refuted allegations levelled against them; the appellant neither opted to record his statement under Section: 340(2) Cr.P.C. nor produced any evidence in his defence.

Trial court after conclusion of trial while acquitting all other co-accused persons has convicted and sentenced Sarfraz under Section: 337-F(vi) PPC whereas convicted and sentenced the appellant as mentioned above through impugned judgment dated: 10.01.2022.

3. Learned counsel for the appellant has submitted that conviction recorded against and sentence awarded to the appellant through impugned judgment are against the 'law and facts' and result of non-reading/ misreading of evidence. Learned counsel for the appellant finally prayed for acquittal of the appellant.

4. Conversely, learned Deputy Prosecutor General has supported the impugned judgment and prayed for dismissal of the appeal.

5. **Arguments heard. Record perused.**

6. As per First Information Report (Ex.PG/1), occurrence took place at 06:30 p.m. on 25.06.2018, Iftikhar Ahmad (complainant/PW-3) along with Ghulam Shabbir (the then injured/now deceased of the case) and Amir Shehzad (PW-4) came and met to Muhammad Shehzad Munawar A.S.I. (PW-10) at Rangla Chowk, Moazzamabad Sargodha Road where he recorded statement (Ex.PG) of Iftikhar Ahmad (complainant/PW-3) regarding the occurrence, prepared separate injury statements of both aforementioned injured persons i.e. Ghulam Shabbir, Amir Shehzad, sent through Samee Ullah 2421/C to Tehsil Headquarter Hospital for medical treatment of both aforementioned injured persons as well as result to be issued by the doctor i.e. Medicolegal Examination Certificates and he sent aforementioned statement (EX.PG) to the police station for registration of case; in this regard, relevant portion from Ex.PG is hereby scanned below: -

Ex - PG

(جاری)

ہوں۔ بیان بالا سائل و حالات واقعات سے سر دست صورت
جرم 324/148/149 ت پ پائی جا کر مضر وہان کے
نقشہ جات مضر وہی علیحدہ علیحدہ مرتب کر کے بدست سچ
اللہ C/2421 کے THQ ہسپتال بغرض علاج معالجہ و
نتیجہ ڈاکٹری بھیج دیا گیا ہے۔ جبکہ تحریر پڈ انشکل استغاثہ جرم مذکور

اس وقت میں مع سچ اللہ C/2421،
عنصر اقبال C/1364، عرفان اسلم C/465 بسواری
موبائل I ڈرائیور نوید C/457 بسلسلہ گشت رنگہ چوک معظم
آباد سرگودھا روڈ موجود ہوں کہ مستثنیت افتخار احمد مع مضر وہب
غلام شہیر اور عامر شہزاد حاضر آئے۔ افتخار احمد بالانے بیان بالا
تقریری دیا جو ضبط تحریر میں لایا جا کر مذکور کو پڑھ کر سنایا و سمجھایا
گیا۔ جس نے صحت بیان خود کو درست تسلیم کرتے ہوئے اپنے
دستخط انگریزی و انگوٹھا ثبت کر دیا۔ جس کی میں تصدیق کرتا

Furthermore, in this regard, relevant portion of statement of Muhammad Shahzad Munawar ASI (PW-10) is also hereby reproduced as under: -

*“Stated that on 25.06.2018, I was posted at P.S Kotmomin. On the same day, I alongwith other police officials was present at Rangla Chowk where complainant Ifthkar Ahmad and got recorded the oral statement EX.PG which read over to him. He made his thumb impression and signature over the same as a token of its correctness. I wrote police proceedings over it and sent the same. through Ansar Iqbal 1364/C for registration of FIR which bears my signatures. **I also prepared injury statements of injured Ghulam Shabbir as EX.PN and injured Amir Shahzad as EX.PJ under the escort of Sami Ullah 2421/C both the injured were sent to THQ, Kotmomin for their medical examination.**”*

(emphasis added)

So, perusal of aforementioned prosecution document i.e. فرد بیان (Ex.PG) as well as statement of Muhammad Shahzad Munawar A.S.I. (PW-10) clearly reveals without any shadow of doubt that after the occurrence, complainant along with both injured persons i.e. Ghulam Shabbir and Amir Shahzad (PW-4) met to Muhammad Shahzad Munawar A.S.I. (PW-10) at Rangla Cowk, Moazamabad Sargodha Road, got recorded their statements over there at 07:15 p.m., Muhammad Shahzad Munawar A.S.I. (PW-10) prepared injury statements of both injured persons and sent them through Samee Ullah 2421/C to Tehsil Headquarter Hospital, Kot Momin for their medical examination as well as issuance of their medicolegal examination certificates and on the basis of said statement/فرد بیان (Ex.PG), subsequently, First Information Report (Ex.PG/1) was recorded at 07:45 p.m. on 25.06.2018.

It is relevant to mention here that Ifthikhar Ahmad (complainant) while appearing as PW-3 during trial of the case categorically stated that after the occurrence, he along with witnesses namely Muhammad Ali, Shoukat and Amir saw Ghulam Shabbir and took him to Tehsil Headquarter Hospital, Kotmomin, police came at THQ Hospital, Kotmomin and got recorded his written statement (Ex.PG); in this regard, relevant portion of his statement is hereby reproduced below: -

“I along with PWs Muhammad Ali, Shoukat and Amir see the Ghulam Shabbir and took the THQ hospital Kotmomin. After receiving information, police came at THQ Hospital Kotmomin and got recorded his written statement Ex.P.G.”

So, complainant (PW-3) clearly negated version recorded by Muhammad Shahzad Munawar A.S.I. (PW-10) in Ex.PG and Ex.PG/1 as well as in his statement before this Court in this regard i.e. about the place where statement of the complainant was recorded as well as the place from where the injured persons were sent to Tehsil Headquarter Hospital. Furthermore, Iftikhar Ahmad (complainant/ PW-3) also stated before the Court that he got recorded his statement at about 06:00/06:30 p.m. at Police Station: Kotmomin and relevant portion of his statement in this regard is hereby reproduced as under: -

“I got recorded my statement at about 06:00/06:30 PM at P.S Kotmomin.”

If as per above statement of the complainant, occurrence initiated at about 06:30 p.m. on 25.06.2018, then recording of statement of the complainant at the police station at 06:00/06:30 p.m. is a question mark. The complainant further stated in his statement before the Court that PWs Shoukat, Muhammad Ali and Amir Shahzad accompanied him at the police station when he got recorded his statement at the police station and after that he alongwith injured Ghulam Shabbir went to the hospital; in this regard, relevant portion of his statement is hereby reproduced as under: -

“PW Shoukat, Muhammad Ali and PW Amir Shahzad were accompanied me at P.S when I got recorded my statement at P.S. After that I alongwith injured Ghulam Shabir went to the Hospital.”

He (complainant/PW-3) also stated that statements of Shoukat Ali, Muhammad Ali and Amir Shahzad under Section: 161 Cr.P.C. were recorded at the police station by the Investigating Officer in the same meeting in which he recorded his statement to the Investigating Officer; relevant portion of his statement in this regard is reproduced below: -

“I.O recorded the statement u/s 161 Cr.P.C. of PWs Shoukat Ali, Muhammad Ali and Amir Shahzad at P.S. PWs recorded their statements to the I.O in the same meeting in which I recorded my statement to the I.O.”

When all aforementioned versions are taken into consideration in totality, then on the one hand “time & place” of recording statement of the complainant for registration of case and taking of injured persons to the hospital by constable mentioned in Ex.PG have clearly been denied by the complainant whereas on the other hand it can be safely held that prosecution could not establish “time & place” of recording statement of the complainant for registration of case as well as bringing of injured persons to the hospital by the police or by the complainant party with **exactness** and this important as well as fundamental component has become doubtful and ultimately vitiated the legal efficacy and sanctity of the most vital document of the prosecution i.e. First Information Report, which is always considered as foundational element and cornerstone of the case of prosecution for the reason that it contains first hand detail of the occurrence presumably free from any adulteration/manipulation, addition or omission and if it is not so as in this case is and there is no explanation in this regard, then superstructure raised on the basis of this F.I.R. i.e. case of prosecution is bound to fall like house of cards; in this regard, guidance has been sought from the cases of “**Mst. ASIA BIBI versus The STATE and others**” (PLD 2019 Supreme Court 64), “**GHULAM ABBAS and another versus The STATE and another**” (2021 S C M R 23), “**PERVAIZ KHAN and another versus The STATE**” (2022 S C M R 393) and “**ABDUL GHAFUOR versus The STATE**” (2022 S C M R 1527).

In this case, ocular account produced by the prosecution comprises of statements of Iftikhar Ahmad {complainant/brother of Ghulam Shabbir (deceased of the case)/PW-3}, Amir Shahzad {injured/son of complainant/ (PW-4)}, Shoukat Hayat (eyewitness/PW-5) and Muhammad Ali (eyewitness/PW-6); as per site plan (Ex.PR) of the place of occurrence, neither house of aforementioned PWs including complainant and injured witness nor their job/work place is at or adjacent to the place of occurrence; Muhammad Hafeez Draftsman while appearing before the Court as PW-8 categorically stated that he has not mentioned the house of complainant in the site plan; in this regard, relevant portion of his statement is reproduced as under: -

“I have not mentioned the house of complainant in site plan.”

Therefore, they all are chance witnesses and thus required to explain and establish plausible as well as valid reason regarding their presence at the “time & place” of occurrence.

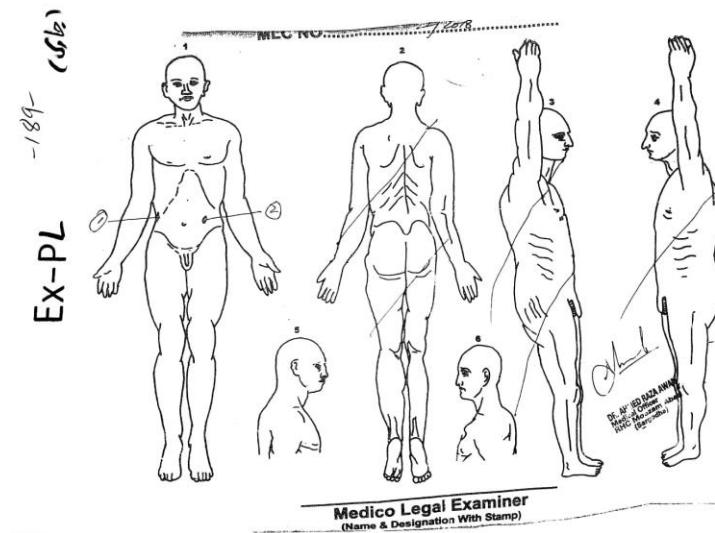
Cricket Bat, Ball, Wicket, Gloves or Pads which are used for playing cricket were neither secured during investigation from the spot nor shown at the spot in the site plans of the place of occurrence; clothes of the complainant or any cited eyewitness stained with blood of Ghulam Shabbir (the then injured/now deceased of the case) were neither taken into possession during investigation nor produced during trial of the case; any earth/soil stained with blood of Amir Shehzad (injured/PW-4) was not secured from the spot; name of complainant or any other cited eyewitness including Amir Shehzad is not mentioned as accompanying person in the MLC (Ex.PL) of Ghulam Shabbir rather name of his son i.e. Ali Raza is mentioned in said MLC but name of Ali Raza is neither mentioned in FIR (Ex.PG/1) nor in the statements of complainant as well as other cited eyewitnesses got recorded by them in the Court.

As per ocular version, Qasim (appellant) fired straight shot with rifle which hit at the abdomen of Ghulam Shabbir whereas perusal of Medicolegal Examination Certificate (Ex.PL) reveals that there was a lacerated entry wound with “inverted and blackened margins” on the right flank of abdomen whereas an exit wound with everted margin was on the front and left side of abdomen 10 cm above from umbilicus; in this regard, relevant portion of statement of Dr. Ahmed Raza (PW-7) is hereby reproduced as under: -

*“1. A lacerated entry wound rounded shape with **inverted and blackened margins** 0.75 x 0.75 cm on the right flank of abdomen. (firearm wound) going deep into abdomen.*

2. A lacerated exit wound oval shape with everted margin 1.5 x 1 cm on the front and left side of abdomen 10 cm above from umbilicus. It is the continuation of injury No.1.”
(emphasis added)

Relevant portion of MLC (Ex.PL) showing pictorial diagram of wounds (available at Page No.189 of the Paperbook) is scanned below: -



So, ocular version regarding locale of injury i.e. the appellant fired shot with rifle which hit at abdomen of Ghulam Shabbir (now deceased of the case) could not find support from MLC (Ex.PL) in *strico sensu*/exactness because entry wound was on the **right flank** of abdomen whereas its exit wound was on the front and **left side** of the abdomen; furthermore, as per site plan (Ex.PS) of the place of occurrence prepared by the Investigating Officer (copy whereof is available at Page No.204-205 of the Paperbook), the appellant fired shot with rifle .44 bore from a distance of 10-Karams at Ghulam Shabbir (now deceased of the case) whereas according to the site plan (Ex.PR) of the place of occurrence prepared with scale by the draftsman (copy whereof is available at Page No.213 to 217 of the Paperbook), the appellant fired shot with rifle .44 bore upon the deceased from a distance of 60-feet. Meaning thereby that as per own documents of the prosecution i.e. Ex.PS and Ex.PR, appellant fired shot with rifle at the deceased from a distance of 10-Karams or 60-feet but as per Medicolegal Examination Certificate (Ex.PL) of Ghulam Shabbir (the then injured/now deceased of the case) and as per statement of Dr. Ahmed Raza (PW-7), on the entry wound, margins were **inverted and blackened**. It goes without saying that as per medical jurisprudence, blackening on the margins of entry wound is absolutely not possible if the shot has been fired from 10-Karams or 60-feet and in this regard, Dr. Ahmad Raza (PW-7) categorically stated that according to medical jurisprudence, **blackening is occurred when firearm injury is caused from approximately 5 to 6 feet**; relevant portion of statement of the doctor (PW-7) in this regard is hereby reproduced: -

“According to medical jurisprudence the **blackening is occurred when fire injury was caused from approximately from 5 to 6 feet.**”

(emphasis added)

Hence, ocular account in this regard has also been clearly negated by the medical evidence.

As per ocular account, after the occurrence, complainant (PW-3), Muhammad Ali (PW-6), Shoukat (PW-5) and Amir (PW-4) brought Ghulam Shabbir (the then injured/now deceased of the case) to Tehsil Headquarter Hospital, Kotmomin but it was clearly negated by FIR (Ex.PG/1) and statement of Muhammad Shahzad Munawar A.S.I. (PW-10).

Though Muhammad Shahzad Munawar A.S.I. (PW-10) prepared injury statements of both aforementioned injured persons and sent them through Samee Ullah 2421/C to Tehsil Headquarter Hospital for their medical examination as well as obtaining result from the doctor on 25.06.2018 yet Amir Shehzad (injured/PW-4) was not medically examined on said date i.e. 25.06.2018 and his medicolegal examination certificate was not obtained on that day; furthermore, if Amir Shahzad (injured/PW-4) was not sent to hospital by PW-10 through constable rather he was directly brought from the place of occurrence by the complainant and other cited eyewitnesses to the hospital, even then he was not got medically examined on 25.06.2018. Prosecution is absolutely silent and remained unable to give an iota of valid/plausible, convincing and acceptable reason in this regard, which is a big blow as well as a question mark on the veracity of case of prosecution.

It is also relevant to mention here that as per statement of Dr. Ahmad Raza (PW-7), Amir Shahzad was brought before him by the police for medical examination on 26.06.2018 at about 10:30 p.m. and he was medically examined at about 11:00 p.m. i.e. on the next date of the occurrence and as per case of prosecution mentioned in statement/فرد بیان (Ex.PG), accused persons after getting Amir Shahzad laid down on the ground, gave him beating with sticks and hunters but only four injuries were noted by the doctor on his body which were comprising of abrasions and contused swelling/mark and the doctor (PW-7), who medically examined him, categorically stated that injuries, abrasions and swelling can

be caused by falling on the hard surface; relevant portion of his statement in this regard is hereby reproduced as under: -

“Injuries abrasion and swelling can be caused by falling over the hard surface.”

Amir Shehzad (injured/PW-4) in his statement also categorically stated that after the occurrence, he alongwith PWs Muhammad Ali, Shoukat and Iftikhar saw Ghulam Shabbir and took him to Tehsil Headquarter Hospital; in this regard, relevant portion of his statement is hereby reproduced below: -

“I along with PWs Muhammad Ali, Shoukat and Iftikhar see the Ghulam Shabir and took the THQ hospital Kotmomin.”

If Amir Shahzad (PW-4) was injured and he came to the hospital alongwith complainant, Muhammad Ali and Shoukat, then why he did not get himself medically examined then and there on the day of occurrence but the prosecution is mum and unable to reply this aspect rather Amir Shahzad (PW-4) himself smashed the case of prosecution on the vital aspect when he categorically stated before the Court that he went to Tehsil Headquarter Hospital, Kotmomin after eight days of the occurrence for his medical examination and relevant portion of his statement is reproduced as under: -

*“I went to the hospital THQ Kotmomin **after 08 days** of occurrence for my medical examination.”*

(emphasis added)

Meaning thereby that he disowned his medical examination conducted on 26.06.2018 and for said reason his MLC (Ex.PH) dated: 26.06.2018 has lost its sanctity as well as legal efficacy and of no avail to the case of prosecution.

It is also a question mark that as per case of prosecution, at least five accused persons gave beating to Amir Shahzad (PW-4) with sticks and hunters but any blood or mud or dust-stained clothes of Amir Shahzad were not produced during investigation or trial; furthermore, any sign of flouncing or struggling made by Amir Shahzad when he was being tortured with sticks and hunters, is also not available at the relevant place in the site plans of place of occurrence.

Amir Shahzad (injured/PW-4) further stated before the Court that after receiving information, police came to Tehsil Headquarter Hospital,

Kotmomin; in this regard, relevant portion of his statement is hereby reproduced as under: -

“After receiving information, police came at THQ Hospital Kotmomin -----”

which was also falsified by the application for registration of case i.e. Ex.PG.

Now on the one hand, as per case of prosecution mentioned in Ex.PG, occurrence started after about 06:30 p.m. whereas on the other hand, Amir Shahzad (PW-4) stated before the Court that his statement was recorded at about 06:30 p.m. on 25.06.2018 at the place of occurrence; relevant portion of his statement in this regard is hereby reproduced: -

“My statement was recorded by the police at the place of occurrence at about 06:30 pm on 25.06.2018.”

So, now again question does arise that if police came at the place of occurrence and recorded statement of Amir Shahzad at 06:30 p.m., then why case was not registered on the basis of said statement and why written statement/فرد بیان (Ex.PG) was recorded at 07:15 p.m. at Rangla Chowk, Moazzamabad Sargodha Road, Kot Momin and then First Information Report (Ex.PG/1) was recorded at 07:45 p.m. on the basis of said statement/فرد بیان (Ex.PG). Amir Shahzad (injured/PW-4) gave further fatal blow to the case of prosecution when he stated during his statement before the Court that after the occurrence, he firstly reached to the police station and reported the matter to the police; relevant portion of his statement in this regard is hereby reproduced as under: -

“After the occurrence I firstly went to the police station and reported the matter to police.”

then why case was not registered on his said report. Furthermore, witness making such inconsistent statements on oath before the Court cannot be relied. He also stated before the Court that his clothes were not blood stained. Relevant portion of his statement is hereby reproduced as under: -

“My clothes were not blood stained.”

As per case of prosecution, Amir Shahzad (injured/PW-4) was given beating with sticks and hunters by so many persons, then why his clothes were not stained with any drop of blood and furthermore, why he went to

Tehsil Headquarter Hospital, Kotmomin after eight days of the occurrence for medical examination according to his own statement recorded before the Court, these factors have created reasonable doubt regarding truthfulness of his testimony.

It is also relevant to mention here that Amir Shahzad (injured/PW-4) has not specified kind of weapon possessed by the accused persons at the time of occurrence and he has also not specified the injuries received by him in his statement recorded under Section: 161 Cr.P.C. before the police; in this regard, relevant portion of his statement is reproduced: -

“I have not specify the kind of weapon possessed by the accused at the time of occurrence in my statement u/s 161 Cr.P.C. I have also not specify who was carrying Hunter, Sota and Rifle at the time of occurrence in my statement u/s 161 Cr.P.C. I have not specify injury received by me in my statement u/s 161 Cr.P.C.”

Though as per case of prosecution, Amir Shahzad (PW-4) is injured witness yet by now it is well settled that injured witness is not necessarily a truthful witness and he cannot be believed merely because he is having stamp of injuries on his body; in this regard, guidance has been sought from the case of **“MUHAMMAD HAYAT and another versus THE STATE”** (1996 SCMR 1411).

Similarly, Iftikhar Ahmad (complainant/PW-3) in his statement before the police did not specify kind of weapon possessed by the accused persons at the time of occurrence; he also did not specify that who was having stick or having hunter at the time of occurrence; in this regard, relevant portion of his statement is hereby reproduced below: -

“I have not specify the kind of weapon possessed by the accused at the time of occurrence in my statement. I have also not specify who was carrying Hunter, Sota and Rifle at the time of occurrence in my statement Exh.P-G.”

He (complainant/PW-3) also did not specify the injury received by his son Amir Shahzad; in this regard, relevant portion of his statement is reproduced as below: -

“I have not specify injury received by my son Amir Shahzad to any accused.”

Likewise, Shoukat Hayat (PW-5) stated before the Court that he along with PWs, Muhammad Ali, Iftikhar Ahmad (complainant) and Amir saw

Ghulam Shabbir and took to Tehsil Headquarter Hospital, Kotmomin; in this regard, relevant portion of his statement is reproduced below: -

“I along with PWs Muhammad Ali, Iftikhar Ahmad and Amir see the Ghulam Shabir and took the THQ hospital Kotmomin. After receiving information, police came at THQ Hospital Kotmomin.”

but it was negated by the contents of application for registration of case i.e. Ex.PG. He further stated that he cannot tell how many fire shots were made at crime scene and after having made fire shots, he visited and took care of Ghulam Shabbir; in this regard, relevant portion of his statement is hereby reproduced below: -

“I cannot tell that how many fire shots were made at the crime scene After having made fire shots I visited and took care of Ghulam Shabir injured (now deceased).”

Even he has given another fatal blow to the case of prosecution when he categorically stated before the Court that he shifted Ghulam Shabbir in injured condition from crime scene to his house; in this regard, relevant portion of his statement is hereby reproduced as under: -

“I shifted injured Ghulam Shabbir from crime scene to his house.”

He also stated that he visited house of Iftikhar and from there he reached at the place of occurrence but at the same time, he could not explain any reason in this regard; relevant portion of his statement is reproduced below: -

“I visited the house of one Iftikhar and from there I reached at the place of occurrence. It is correct that I have not mentioned the reason for visiting the house of said Iftikhar in my statement u/s 161 Cr.P.C.”

Then, he stated that since he was not present inside the school therefore he cannot tell the detail of weapons retained by the accused persons; in this regard, relevant portion of his statement is reproduced as under: -

“As I was not present inside the school, therefore, I cannot tell the detail of weapons retained by the accused persons.”

He also gave the most fatal blow to the case of prosecution when stated before the Court that he has not witnessed the occurrence as he remained present outside outer wall of the school; in this regard, relevant portion of his statement is reproduced below: -

“I have not witnessed the occurrence as I remained present outside of outer wall of the school.”

(emphasis added)

Similarly, Muhammad Ali (PW-6) stated that he along with PWs Shoukat, Iftikhar Ahmad and Amir saw Ghulam Shabbir and took him to Tehsil Headquarter Hospital, Kotmomin and the police after receiving information, came at the hospital; in this regard, relevant portion of his statement is reproduced as under: -

“I along with PWs Shoukat, Iftikhar Ahmad and Amir see the Ghulam Shabir and took the THQ Hospital Kotmomin. After receiving information, police came at THQ Hospital Kotmomin.”

however it was also negated by the contents of *Fard Biyan* (فرد بیان).

Though he (PW-6) stated during cross-examination before the Court that he went to the Dera of Iftikhar on fateful day at about 04:30 p.m. yet in his statement recorded under Section: 161 Cr.P.C., he has not recorded any reason regarding his visit to said Dera; relevant portion of his statement is reproduced as under: -

“I went to the Dera of Iftikhar/complainant on fateful day at about 04:30 PM. Shoukat Hayat came at the Dera of complainant by motorcycle alone at about 05:00 PM. I have not recorded the reason of visiting Dera of Iftikhar to the I.O. in my statement u/s 161 Cr.P.C.”

He even could not attribute specific injuries of Amir Shahzad to the accused persons and similarly, he also could not specify the weapons to each accused; in this regard, relevant portion of his statement is reproduced as under: -

“I have not got recorded in my statement the specific injuries attributed to the accused caused to the injured Amir. I have not specify the weapon i.e. Hunter, Sota and Rifle to each accused which was possessed by them during occurrence in my statement.”

He also gave blow to the case of prosecution while stating before the Court that at the time of occurrence, he was at a distance of 10-Furlong from the deceased, complainant was present at a distance of 5-Furlong from the deceased whereas he was at 5-Furlong away from the school gate at the time of occurrence; in this regard, relevant portion of his statement is reproduced as under: -

“At the time of occurrence I was present at a distance of 10 furlong away from deceased Ghulam Shabir. Whereas complainant Iftikhar was present at the distance of 05 furlong away from the deceased on western side. I was 05 furlong away from the School gate at the time of occurrence.”

It goes without saying that he (PW-6) in his statement clearly stated that wall of the school was about 07 feet high; relevant portion of his statement is reproduced as under: -

“The wall of school is about 07 feet high.”

He even tried to improve his statement; in this regard, relevant portion of his statement is hereby reproduced below: -

“I also got recorded in my statement u/s 161 Cr.P.C. that accused Qasim made fire shot which hit on the left flank of Ghulam Shabir confronted with Exh.DA where this fact is not mentioned.”

By now it is well settled that witness who introduces dishonest improvement or omission for strengthening the case, cannot be relied; in this regard, case of **“MUHAMMAD ARIF versus The STATE”** (2019 SCMR 631) and **“KHALID MEHMOOD and another versus The STATE and others”** (2021 SCMR 810) can be advantageously referred.

Though as per own case of prosecution mentioned in **فرد بیان** (Ex.PG), the persons present in the school informed the complainant about the torture upon Amir Shahzad by accused persons but none of them was cited as witness to prove this important aspect.

When all aforementioned factors are taken into consideration in totality, then this Court has come to the definite conclusion that ocular account is full of major contradictions, neither supported/confirmed in *stricto sensu* by the medical evidence nor confidence inspiring/truthful; hence, same cannot be relied and is hereby discarded.

As far as medical evidence is concerned, though it has not supported the case of prosecution in *stricto sensu* (as detailed above) yet it is trite law that medical evidence is mere supportive/confirmatory type of evidence; it can tell about locale, nature, magnitude of injury, duration of the injury and kind of weapon used for causing injury but it cannot tell about identity of the assailant who caused the injury; therefore, same neither can provide any corroboration nor is of any help to the prosecution in peculiar facts and circumstances of the case and in this regard guidance has been sought from

the case of “**MUHAMMAD RAMZAN versus The State**” (2025 SCMR 762), relevant portion from the case law is as under:-

“It is by now well settled that medical evidence is a type of supporting evidence, which may confirm the prosecution version with regard to receipt of injury, nature of the injury, kind of weapon used in the occurrence but it would not identify the assailant.”

So far as recovery of .44 bore rifle (P-9) at the pointing out of the appellant is concerned, suffice it to say that any cartridge case of .44 bore rifle was not found from the place of occurrence and as per report of Punjab Forensic Science Agency, Lahore (Ex.PT), said rifle was only found in mechanical operation condition; hence said report is inconsequential and recovery of the rifle .44 bore (P-9) is of no help to the case of prosecution; in this regard, guidance has been sought from the case of “**MANZOOR AHMED SHAH and others versus The STATE and others**” (2019 SCMR 2000), “**IMTIAZ ALIAS TAJI and another versus The STATE and others**” (2020 SCMR 287), “**LIAQAT ALI and another versus The STATE and others**” (2021 SCMR 780) and “**KHALID MEHMOOD alias KHALOO versus The STATE**” (2022 SCMR 1148).

As far as motive of the occurrence is concerned, suffice it to say that it has been categorically mentioned in aforementioned statement (Ex.PG) that accused persons were having old grudge with Ghulam Shabbir (brother of the complainant) and due to this grudge, all accused persons with the intention to kill, made straight firing; however, any evidence could not come on the record to establish motive and in this regard, statement of Muhammad Shahzad Munawar (PW-10) can be safely referred; relevant portion of his statement is reproduced as under: -

“During my investigation no documentary proof regarding previous enmity between the parties was produced before me.”

Similarly, statement of Muhammad Iqbal S.I. (PW-11) can also be referred and relevant portions of his statement are reproduced below: -

“The motive part has not be attributed to any individual accused of this case. During my investigation neither any independent witness was produced for the prosecution side for providing motive part nor any documentary evidence in this regard was produced by the prosecuton side.”

“Regarding motive part no documentary evidence of previous litigation has been produced before me by the complainant side.”

Hence, trial court has rightly not believed the motive for the valid reasons and relevant portion from Paragraph No.52 of the impugned judgment is hereby reproduced as under: -

“Motive part alleged from prosecution side in application for registration of FIR Ex.PG and FIR Ex.PG/1 was not proved.”

So, in this case, motive could not be proved through any independent and cogent evidence/material; furthermore, motive is a double edged weapon, it cuts both the ways, it can also be a reason for false implication; even otherwise, when substantive evidence has been discarded, then motive loses its significance and becomes immaterial for conviction.

7. Nutshell of the above discussion is that when case of the prosecution is analyzed from all angles, then this Court has come to the conclusion that prosecution has been failed to prove its case against the appellant, therefore, there is no need to discuss defence version.

8. In view of what has been discussed above, instant appeal filed by **Muhammad Qasim** (appellant) is **allowed**; conviction recorded and sentence awarded to the appellant through impugned judgment dated: 10.01.2022 are hereby set-aside. Appellant is acquitted of the charge, he be released from jail forthwith, if not required in any other case.

(Farooq Haider)
Judge

Approved for reporting

(Farooq Haider)
Judge